STEPHEN M. BERNHARDT, ESQ.
Stephen@BRFlorida.com
Phone: (727) 275-9575 | Fax: (727) 382-0057

ATHENA PEARL RILEY, ESQ.
Athena@BRFlorida.com
Phone: (850) 786-3466 | Fax: (727) 382-0057

BERNHARDT RILEY
ATTORNEYS AT LAW

September 3, 2025

Sent via certified mail:
LLW Construction, Inc.
c/o Michal J. Winiarek, Registered Agent
1712 West North B Street
Tampa, Florida 33606
Tracking No.: 9407111898765479682707

RE: **Demand Letter Regarding Breach of Contract/ Lien**
Property Address: **3414 South Belcher Drive, Tampa, Florida 33629**

Dear Sir or Madam:

Our law firm has been retained by Erik Devlin and Amber Bell (hereinafter "Clients") regarding the Contract for Construction (hereinafter "Contract") regarding the renovation of the Property (hereinafter "Project") to be completed by LLW Construction, Inc. (hereinafter "Contractor") at the property located at 3141 South Belcher Drive, Tampa, Florida 33629 (hereinafter "Property"). We also reviewed the Notice to Owner (hereinafter "Notice") from Tibbetts Lumber Co,, LLC (hereinafter "Tibbetts") and the recorded lien (hereinafter "Lien") regarding an outstanding balance pertaining to the Project. Please direct future communications and any other related items regarding this matter to our attention.

Background

As you are aware, on or about November 14, 2024, our Clients entered an agreement with Contractor for the Project in relation to the renovation of their Property for a total amount of One Hundred Twenty-Three Thousand Three Hundred Thirty-Five U.S. Dollars and Zero Cents ($123,335.00). Our Clients paid Contractor an initial installment of Twenty-Five Thousand U.S. Dollars and Zero Cents ($25,000.00), pursuant to the agreement. Contractor commenced the Project.

Contractor began the Project according to the terms of the Contract in or about December 2024; however, it was evidently shortly thereafter that there were issues with the quality of the work and also incomplete tasks. From this point forward, our Clients began sending emails and text messages regarding the subpar quality of work. The Contractor either failed to respond to many of the messages or provided a very limited response. Our Clients continued to make all scheduled installment payments in accordance with the Contract.

Unfortunately, there has been very limited communications from Contractor since January 2025. Any communications received from Contractor has been a request for additional funds. Pursuant to the Contract our Clients have paid One Hundred Thousand U.S. Dollars and Zero Cents ($100,000.00) of the Contract obligations, but the Project is incomplete and the work that has been completed is below industry standards. The work completed by Contractor has been so subpar, due to horrible framing, our Clients had to remove everything installed by the Contractor in a bathroom and remodel it themselves. The Contractor has also advised our Clients that he is out of money and needs more money to complete the Project.

Subsequently, our Clients received a Notice, dated April 23, 2025, from Tibbetts regarding an unpaid balance; however, the amount owed was not specified in the Notice.

It is further our understanding that on or about July 21, 2025, Tibbetts recorded the Lien against the Property for the unpaid balance of Three Thousand Fifty U.S. Dollars and Ninety-Five Cents ($3,050.95) in the Hillsborough County Public Records. In order to avoid the ramifications of the Lien, our Clients have agreed to pay Tibbetts Three Thousand Fifty U.S. Dollars and Ninety-Five Cents ($3,050.95).

Legal Analysis

It is undisputed that the parties entered into the Contract on or about November 14, 2024. To determine the duties and obligations of the parties, we must first examine the language of the Contract. It is axiomatic that the clear and unambiguous words of a contract are the best evidence of the intent of the parties. *Murry v. Zynyx Mktg. Communs., Inc.*, 774 So. 2d 714, 715 (Fla. 3d DCA 2000). Where the language used in a contract is unambiguous "the plain meaning of that language controls." *Charles Bernard, Ltd. v. Tobias Jewelry Ltd.*, 751 So. 2d 711, 713 (Fla. 3d DCA 2000).

To determine our Clients' rights and obligations related to the Project, Article 5 titled "Agreement to Build," provides Contractor's responsibilities as follows:

> *Contractor agrees to complete the Work as described in this Contract, and the Customer agrees to provide payments listed in this Contract. The pricing is guaranteed to the Customer as long as the Construction State Date (as herein defined) is within 120 days of the Contract Date and so long as other equitable price escalation provisions of this Contract are not triggered. The Contractor hereby agrees to complete the Work in substantial ("substantial" is herein defined as within reasonable tolerances and to an acceptable degree within the industry) conformance with the Plans (if required) and Work Scope…*

Furthermore, Article 15 of the Contract titled "Default by Contractor", states the following:

> *If the Contractor fails to perform any action required of it by this Contract, or by action or inaction is otherwise in default of this Contract, Customer shall provide written notice to Contractor of the specific nature of the alleged default and provide reasonable opportunity, such as reasonable opportunity being no less than 10 days, to cure the default before Customer shall be entitled to institute any action to enforce the Contract or any action for damages relating to this Contract. If the default is not cured by Contractor within the allowed cured period, the Customer will have the right to cancel this agreement with no further penalty.*

Based on the Contract and the information provided by our Clients, the Contractor has failed to complete the work in accordance with industry standards. Furthermore, the as the Project was commenced within 120 days after execution of the Contract, the Contract price was guaranteed and Contractor failed to provide any evidence of the requested additional payment request were for equitable reasons. Therefore, the equitable price increases were not triggered in accordance with the Contract.

Our Clients may have a cause of action for breach of contract. To succeed on a breach of contract cause of action, one must prove the following: (1) a valid contract; (2) a material breach; and (3) damages. *See Murciano v. Garcia*, 958 So. 2d 423, 423 (Fla. 3d DCA 2007). It is undisputed that the Parties entered into an enforceable Contract, which may have been breached when Contractor failed to complete the Project, failed to honor the price guarantee and failed to pay subcontractors. If Contractor does not remedy the issues, he could be held liable for damages, including the cost of retaining a second contractor to complete the Project and for failing to pay the subcontractors.

Our Clients also may be able to pursue a claim for unjust enrichment. The elements of a cause of action for unjust enrichment are: (1) plaintiff has conferred a benefit on the defendant, who has knowledge thereof; (2) defendant voluntarily accepts and retains the benefit conferred; and (3) the circumstances are such that it would be inequitable for the defendant to retain the benefit without first paying the value thereof to the plaintiff. *Agritrade, LP v. Quercia*, 253 So. 3d 28 (Fla. 3d DCA 2017). The basis of the remedy of unjust enrichment is to provide restitution where one person has been unjustly enriched at the expense of another. *Id.* Thus, our Clients could argue that they provided Contractor with a benefit, which in this case is installment payments, in exchange for his services and Contractor voluntarily accepted and retained the benefit; however, he became unjustly enriched when he failed to perform the services he was hired to do and failed to pay subcontractors. Thus, our Clients would be entitled to restitution in the form of the value they paid for his services.

On the issue of liens, in Florida, general contractors and subcontractors have the right to file a mechanic's lien against the property where they performed work and for which they were not paid. Pursuant to Florida Statute § 713.02 (4), "*Persons who are not in privity with an owner and who perform labor* *or services or furnish materials constituting a part of an improvement under the direct contract of another person shall have rights to lien on real property as provided in s. 713.06*."

As a result of Contractor's failure to pay Tibbett, a Lien was placed on our Clients' Property pursuant to Florida Statute § 713.02 (4). In order to avoid the possible consequence of foreclosure, our Clients set up a payment arranged with Tibbets for the outstanding balance Contractor failed to pay. Therefore, our Clients would be entitled to be reimbursed by Contractor the full amount paid to Tibbett to remove the Lien on their Property.

Demand

As such, let this correspondence serve as a formal demand letter that (1) Contractor immediately reimburse Three Thousand Fifty U.S. Dollars and Ninety-Five Cents ($3,050.95) required to pay to Tibbett to release the Lien against our Clients' Property; (2) Contractor complete the Project according to industry standards in accordance with the Contract's guaranteed pricing; (3) reimbursement of Eleven Thousand Three Hundred Ninety-Five U.S. Dollars and Zero Cents ($11,395.000 for our Clients repairing the bathroom due to the improper framing and replacement of items such as cabinets that should have been covered by their installment payments and (4) in the alternative Contractor reimburse our Clients any costs associated with hiring another contractor to complete the Project if Contractor is unable to complete the Project payable to "Bernhardt Riley, Attorneys at Law, PLLC" and mailed to "Bernhardt Riley, Attorneys at Law, PLLC, 2706 Alt. US 19 North, Suite 213, Palm Harbor, Florida 34683."

Should we fail to receive any response within ten (10) calendar days from receipt of this letter, we will assume you intend to reject this demand and will proceed to take any necessary legal action afforded to our Client.

Thank you for your prompt attention to this matter and we look forward to your compliance with the above. Please do not hesitate to reach out to our office at (727) 275-9575 or via e-mail at mola@brflorida.com and cc: angelica@brflorida.com, should you wish to further discuss.

Sincerely,

/s/ Mola R. Bosland

Mola R. Bosland, Esq.
Division Attorney
Bernhardt Riley, Attorneys at Law, PLLC
Attorney for Erik Devlin and Amber Bell